

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****PIERRE CELESTIN,**

Plaintiff,

-against-

**THE CITY OF NEW YORK, DETECTIVE
WILLIAM UBIETA (SHIELD NO. 4277); TAX
ID 916828; DETECTIVE LORAINNE WINTERS
(SHIELD NO. 1169, TAX ID 921297);
DETECTIVE O'BRIEN (SHIELD NO.
UNKNOWN); RETIRED DETECTIVE JAMES
MCCAFFERTY (SHIELD NO. UNKNOWN,
TAX ID 883339); RETIRED DETECTIVE
VICTORIA BURTON (SHIELD NO.
UNKNOWN); DETECTIVE AIDA SICARDO
(SHIELD NO. 144); DETECTIVE CARLOS
PANTOJA (SHIELD NO. 7711, TAX ID 918120);
DETECTIVE ANTHONY CARREIRA (SHIELD
NO. 3150, TAX ID 938172); DETECTIVE
WILLIAM GONZALEZ (SHIELD NO. 4336,
TAX ID 894480); P.O. JAMES GRANT (SHIELD
NO.); P.O. ROMAN KULICHENKO (SHIELD
NO. 7183); and P.O. DALMIN VASQUEZ
(SHIELD NO. 13931),**

Defendants.

Index No.:

SUMMONSPlaintiff designates KINGS
County as the place of trial

To the above-named Defendants:

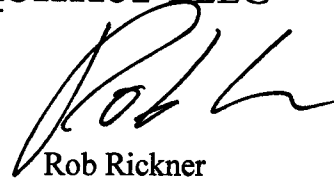
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
December 31, 2020

Rickner PLLC

By:



Rob Rickner

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New York, New York 10005
Phone: (212) 300-6506
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Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

DETECTIVE WILLIAM UBIETA (SHIELD NO. 4277); TAX ID 916828; DETECTIVE LORAINNE WINTERS (SHIELD NO. 1169, TAX ID 921297); DETECTIVE O'BRIEN (SHIELD NO. UNKNOWN); RETIRED DETECTIVE JAMES MCCAFFERTY (SHIELD NO. UNKNOWN, TAX ID 883339); RETIRED DETECTIVE VICTORIA BURTON (SHIELD NO. UNKNOWN); DETECTIVE AIDA SICARDO (SHIELD NO. 144); DETECTIVE CARLOS PANTOJA (SHIELD NO. 7711, TAX ID 918120); DETECTIVE ANTHONY CARREIRA (SHIELD NO. 3150, TAX ID 938172); DETECTIVE WILLIAM GONZALEZ (SHIELD NO. 4336, TAX ID 894480); P.O. JAMES GRANT (SHIELD NO.); P.O. ROMAN KULICHENKO (SHIELD NO. 7183); and P.O. DALMIN VASQUEZ (SHIELD NO. 13931).
One Police Plaza
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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NO.); P.O. ROMAN KULICHENKO (SHIELD
NO. 7183); and P.O. DALMIN VASQUEZ
(SHIELD NO. 13931),**

Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiff Pierre Celestin, by his attorneys, Rickner PLLC, complaining of the Defendants,
alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the
New York City Police Department ("NYPD"), who violated Plaintiff's rights under the

Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the Plaintiff's claims arose in the County of Kings.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff, Pierre Celestin ("Celestin") is, and was at all times relevant to this action, a resident of Nassau County in the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Detective William Ubieta (Shield No. 4277, TAX ID No. 916828) (hereinafter “Ubieta”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Detective Ubieta is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Detective Ubieta is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Detective Lorraine Winters (Shield No. 1169, Tax ID No. 921297) (hereinafter “Winters”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein she was acting under color of New York state law, and acting in the course and scope of her duties. She is sued in her individual capacity.

16. Detective Winters is entitled to indemnification by the City of New York under New York law for any liability arising from her conduct described herein.

17. Detective Winters is entitled to indemnification by the City of New York pursuant to contract for any liability arising from her conduct described herein.

18. Defendant, retired Detective James McCafferty (Shield No. 3008; Tax No. 883339) (hereinafter “McCafferty”), was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

19. Detective McCafferty is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

20. Detective McCafferty is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

21. Defendant, retired Detective Victoria Burton (Shield No. unknown, Tax ID No. unknown) (hereinafter “Burton”), was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein she was acting under color of New York state law, and acting in the course and scope of his duties. She is sued in her individual capacity.

22. Detective Burton is entitled to indemnification by the City of New York under New York law for any liability arising from her conduct described herein.

23. Detective Burton is entitled to indemnification by the City of New York pursuant to contract for any liability arising from her conduct described herein.

24. Defendant Detective Aida Sicardo (Shield No. 144 *or* 16620, Tax ID No. unknown) (hereinafter “Sicardo”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein she was acting under color of New

York state law, and acting in the course and scope of his duties. She is sued in her individual capacity.

25. Detective Sicardo is entitled to indemnification by the City of New York under New York law for any liability arising from her conduct described herein.

26. Detective Sicardo is entitled to indemnification by the City of New York pursuant to contract for any liability arising from her conduct described herein.

27. Defendant Detective Carlos Pantoja (Shield No. 7711, Tax ID No. 918120) (hereinafter “Pantoja”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

28. Detective Pantoja is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

29. Detective Pantoja is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

30. Defendant Detective Anthony Carreira (Shield No. 3150, Tax ID No. 938172) (hereinafter “Carreira”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

31. Detective Carreira is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

32. Detective Carreira is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

33. Defendant Detective William Gonzalez (Shield No. 4336, partial Tax ID No. 894480) (hereinafter “Gonzalez”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

34. Detective Gonzalez is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

35. Detective Gonzalez is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

36. Defendant P.O. James Grant (Shield No. 8377, Tax ID No. unknown) (hereinafter “Grant”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

37. Officer Grant is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

38. Officer Grant is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

39. Defendant P.O. Roman Kulichenko (Shield No. 7183, Tax ID No. unknown) (hereinafter “Kulichenko”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New

York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

40. Officer Kulichenko is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

41. Officer Kulichenko is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

42. Defendant P.O. Dalmin Vasquez (Shield No. 13931, Tax ID No. unknown) (hereinafter “Vasquez”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

43. Officer Vasquez is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

44. Officer Vasquez is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

45. Defendant Detective Doe #1, surname O’Brien (Shield No. Unknown) (hereinafter “Doe #1”), was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment He is sued in an individual capacity. During all times relevant to this action, Doe #1 was a lead detective working at the 70th precinct with Detectives Ubieta and Winters on the underlying crimes giving rise to the allegations contained herein.

46. The true first name and shield number of Defendant Doe #1 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing Detective Doe’s defense in this action.

47. Collectively, Defendants Ubieta, McCafferty, Winters, Sicardo, Pantoja, Carrerira, Gonzalez, Grant, Kulichenko, Vasquez, and Doe #1 are referred to as the “Individual Defendants.”

48. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

49. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

50. On April 27, 2015, Pierre Celestin was attending the funeral of José “Cheo” Robles, in Brooklyn, at a church, when a gunfight broke out, and Celestin’s brother Fritz was shot in the back, nearly fatally.

51. An ambulance came, and Celestin stayed at the scene while his brother, who was gravely wounded.

52. A witness described the shooter as 5'5" and over 200 lbs. Celestin does not fit this description. He is well over 6' tall, and at the time was over 400 lbs. Celestin's brothers are also much taller than 5'5".

53. Witnesses said the shooters got out of an SUV and began shooting, but Celestin and his brothers were in the church, attending the funeral and would not have been seen getting out of an SUV.

54. Two men, Sharieff Clayton and Ronald Murphy, were also shot during the incident, and died.

55. Celestin was taken to a precinct, questioned by police without being Mirandized, and then was released from custody.

56. Celestin has no criminal history, except for this wrongful prosecution.

57. Celestin's brother Fritz was in the hospital for four months, fighting for his life.

58. For months, neither brother was arrested, and the murders of Clayton and Murphy went unsolved.

59. There was extensive forensic evidence from the crime scene, including DNA and fingerprints, but none of it implicated Celestin.

60. Celestin was never found with a weapon, nor were his brothers, and despite extensive searches and forensic testing, none of them were ever connected to a firearm during the shooting.

61. As many as 50 people were at the wedding, but none of them came forward in the months afterwards to implicate Celestin, or his brothers.

62. The police became more and more desperate to solve this high-profile crime, when suddenly two witnesses, Alcides Perez and Lorde Young, contacted Crime Stoppers, seemingly out of out of the blue.

63. But that was not what really happened. Both witnesses had been in contact with police, who told them details of the crime, including the name of Celestin, who the police called “Gregory.”

64. Both witnesses later admitted they did not know Celestin, and in fact could not have entered his and his brothers’ names into the Crime Stoppers website – without the police telling them first.

65. The police also fabricated ballistics evidence, claiming to find a bullet in the SUV Celestin’s brother had rented.

66. Even with help from the police, the two witnesses were fundamentally unreliable, could not keep their stories straight, and contradicted multiple first-hand accounts and other statements.

67. Initially, Perez said he saw nothing.

68. Perez also did an interview with the New York Daily News and the Wall Street Journal, at the scene of the crime, where he told both reporters that he did not see the shooting – and that he ran away as fast as he could.

69. Perez was interviewed by Officer Dawson on April 28, 2015, and admitted that he did not see the shooters at all.

70. Later, after talking to the police and hearing the allegations about Celestin, and when Crime Stoppers offered money, Perez’s story changed drastically.

71. On August 30, 2015, Perez contact crime stoppers and claimed that Celestin's brothers were the shooters – but never mentioned Celestin as being one of the assailants. But Perez later admitted that he did not know the names of any of the Celestin brothers, and these names must have come from another source – and according to the police documentation, he never provided the police with any explanation as to how he knew these names.

72. Initially, Perez had submitted the Crime Stoppers tip anonymously, meaning that he could not get paid. When he realized his mistake, he submitted another tip, on September 21, 2015, with his name. Soon after the police approached him again.

73. The timing is extremely suspicious because the police had identified a man, Yasser Julio, as one of the assailants. But he died on September 20, 2015, and was no longer a useful suspect or capable of being prosecuted. Perez submitted his tip the next day.

74. Perez continued to have trouble keeping his story straight, called Celestin by the name “Gregory” and at trial he thought Celestin was his brother Daniel, among other times he could not keep the brothers' names straight.

75. Perez never explained why, months later, he suddenly decided to cooperate, and how he suddenly knew some of the Celestin brothers' names – even if he could not keep the straight, much of the time. This was because he was told the names of the Celestin brothers by the police, and did not know them from his own experiences, so he had trouble keeping them straight.

76. Perez suffers from memory loss and post-traumatic stress disorder due to his time in the military. Due to his symptoms, he had a panic attack and his eyes glazed over, making it impossible to remember any details.

77. 27. When Perez was interviewed later under oath, he lied about getting \$1,500 from Crime Stoppers for his testimony.

78. A pastor at the church, who was at the scene, testified that a white SUV pulled up, two men got out, and immediately started shooting. Perez, however, claims that the three people – Celestin and his two brothers, were walking, Celestin's brother Fritz was assaulted by Clayton, and then all three brothers started shooting.

79. The Celestin brothers did not get out of a vehicle immediately prior to the shooting, because they were attending the funeral, and Perez even admitted that one of Celestin's brothers had a hat with the name Chao, which was the person whose funeral was being held.

80. Perez later claimed at trial that he went down on one knee as the shooting started, hid behind his car, and called 911. But admitted he lied to the 911 operator.

81. Perez claims that he saw four shooters, when in fact forensics only was able to identify three firearms.

82. Young followed a similar pattern. The day of the shooting he smoked multiple blunts. He says he was standing at least three stores away, in the dark. And he was behind a tree. He could not have seen the shooting, and given his extensive criminal history, and history of violence, was fundamentally untrustworthy.

83. Young was a drug dealer and gang member, and well known to the police, but he denied ever cooperating with the police before, claiming that this was the first time, despite decades of criminal activity in the same precinct.

84. Young claimed he spontaneously decided to go to the precinct roughly a month after the shooting, and he admitted to getting a card for the lead detective, and calling him some time later. He did not know Celestin and his brothers before; this is when he learned their names. The detectives never officially recorded this meeting in police documents.

85. Then he did nothing, for months, even though Clayton, one of the victims, was allegedly one of his friends.

86. But almost immediately after Perez made his second tip to Crime Stoppers, right after the death of the police's prime suspect Julio, likely prodded into action by the police, Young also submitted a tip that called the Celestin brothers by names and nicknames that he did not know, and would not have known, without assistance to the police.

87. Later, on the stand at trial, Young admitted that he knew only the names of the alleged perpetrators because the police told him who they were.

88. Young admitted that the shooters came out of a Lexus, not the Lincoln Infinity SUV that documentary evidence showed Celestin's brother had rented.

89. Young was shown a photo array with Celestin's face, but could not identify anyone.

90. Soon after, at a line-up, with five fillers who looked nothing like Celestin physically (except maybe his skin tone), Young looked at Celestin and asked where Fritz, his brother was. Celestin's lawyer was there, and the police immediately kicked her out of the room when Young could not make a proper identification.

91. But, having no leads or other ways to properly solve the two murders, the police hid the fact that they had engineered the Crime Stoppers tips, and the fact that the two witnesses could not keep their stories straight or properly identify witnesses, and forwarded this manufactured criminal investigation to the district attorney, who believed the police and prosecuted Celestin.

92. Further, even though it was apparent that the shooters came out of a different vehicle, the police impounded and searched the SUV Celestin's brother had rented. It was carefully searched for eight hours, but no relevant evidence was discovered.

93. But after this eight hour search, Officers Pantoja and Kulichenko suddenly found a bullet – and this discovery became the only forensic evidence to link Celestin to the murders. This was entirely manufactured and any bullet would have been found during the initial sweep.

94. Celestin was arrested in 2015 and held in the notoriously horrible Riker’s Island until he was acquitted on October 2, 2019. The jury saw through the police fabrications, and acquitted him on all charges.

THE INDIVIDUAL OFFICERS’ HISTORY OF MISCONDUCT

95. Detective Ubieta has a history of violating people’s civil rights while employed by the NYPD and has received at least two Civilian Complaint Review Board (“CCRB”) complaints from members of the public. Detective Ubieta has also been named an officer defendant in at least two federal civil rights actions, including *Allen et al v. The City of New York et al*, Case No. 11-CV-03658, and *Chinweuba v. City Of New York, et al*, Case No. 14-CV-04301.

96. Detective Winters has a history of violating people’s civil rights while employed by the NYPD and has received at least seven CCRB complaints from members of the public. Detective Winters has also been named as an officer defendant in at least one other federal civil rights action, *Debrosse v. City Of New York, et al.*, 13-CV-03822.

97. Detective McCafferty has a history of violating people’s civil rights while employed by the NYPD and has received at least ten CCRB complaints from members of the public.

98. Detective Burton has a history of violating people’s civil rights while employed by the NYPD and has received at least one CCRB complaint from a member of the community.

99. Detective Carreira has a history of violating people’s civil rights while employed by the NYPD, and has received at least one CCRB complaint from a member or the public. In 2019,

McCafferty was named in a Title VII discrimination suit for his racist behaviors and comments directed toward fellow officers and members of the community he is sworn to protect.

100.P.O. Grant has a history of violating people's civil rights while employed by the NYPD, and has received at least thirteen CCRB complaints from members of the public.

101.P.O. Kulichenko has a history of violating people's civil rights while employed by the NYPD, and has received at least two CCRB complaints from members of the public.

102.P.O. Vasquez has a history of violating people's civil rights while employed by the NYPD, and was named as an officer defendant in at least one federal civil rights case, *Mosely v. City of New York et al*, Case No. 09-CV-02613.

103.Despite these repeated incidents of misconduct, the City of New York of New York has failed to meaningfully discipline or properly supervise the above-mentioned officers.

THE INJURIES TO PLAINTIFF

104.This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

105.These damages include losing his position at multiple jobs, being embarrassed and nor excommunicated by the Nassau County politicians he used to work and social with, and the ultimate failure of his marriage.

106.The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

107. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

108. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

109. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

110. The grand jury indictment is a nullity because it was procured using false evidence and statements and by withholding exculpatory evidence and statements.

111. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

112. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

113. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

114. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

115. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

116. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court, including the falsified statements of Perez and Young and the manufactured ballistics evidence.

117. The Individual Defendants withheld exculpatory evidence from the prosecution, defense counsel, and court, including the fact that they had coached Perez and Young to provide Celestin's name and other statement that made their testimony believable to the prosecution.

118. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution to be free from prosecution based on false statements and under *Brady v. Maryland*, 373 U.S. 83 (1963), and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

119. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**THIRD CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

120. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

121. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

122. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

123. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

124. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

125. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

126. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

127. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

128. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

129. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**FIFTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

130. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

131. The Individual Defendants initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

132. Any presumption of probable cause conferred by the grand jury indictment is rebutted because the indictment was procured through false evidence and statements, and by withholding exculpatory evidence, as detailed above.

133. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

134. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

135. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

136. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

137. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

138. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

139. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

140. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

141. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

142. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

143. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

144. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

145. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

146. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

147. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

148. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, .

149. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

150. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

151. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
DEFAMATION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

152. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

153. The Individual Defendants knowingly released false information about Plaintiff to the news media, including false statements that Plaintiff had committed a crime.

154. The actions of the Individual Defendants damaged the reputation of plaintiff.

155. The actions the Individual Defendants were performed with malice and disregard for the truth.

156. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as *per se* damages.

157. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

158. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
December 31, 2020

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff Pierre Celestin.

2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
December 31, 2020

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff